

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

5. COURTNEY GUBERT V. CASEY GUBERT

PFL20200248

On July 30, 2026, Respondent filed an Ex Parte Application and Declaration for Orders and Notice requesting custody and visitation orders. The court denied the requests ex parte but referred the parties to an emergency set Child Custody Recommending Counseling (CCRC) appointment and admonished Petitioner that monetary sanctions may be imposed for each exchange missed. A review hearing was set for the present date.

On August 27, 2026, Petitioner also filed an ex parte application seeking custody and visitation orders. The court declined to make any changes to custody orders but appointed Minor's Counsel and affirmed the review hearing date.

The parties attended CCRC on August 18th and were unable to reach any agreements. A report with recommendations was prepared and mailed to the parties on September 3, 2026.

Petitioner filed a Responsive Declaration to Request for Order on September 9th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made September 3rd the last day for filing Petitioner's responsive declaration. As such, the court has not read or considered it.

Respondent filed and served a supplemental declaration on September 9th. The court deems this to be a reply declaration and it is therefore, timely.

Minor's Counsel has not filed a declaration with the court.

Respondent is requesting temporary sole legal and physical custody of the minors. He requests an order for Petitioner to undergo a mental health evaluation with a licensed mental health provider and he asks that Petitioner's parenting time be supervised. He asks that the court adopt the recommendations of CCRC with specified modifications as set forth in his supplemental declaration.

Petitioner opposes the requests and instead asks that she be granted sole legal and sole physical custody of the children. She asks that the children be allowed to continue their current mental health treatment and participate in reunification therapy with

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Respondent only when the children's treating therapists determine they are ready. She also asks for a suspension of unsupervised overnight visits between Respondent and the children. She requests an order for supervised visits only.

After reviewing the filings as outlined above, the court finds the recommendations contained in the September 3, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court with the following modifications. The Legal Custody section is amended to read as follows: "Respondent shall have sole legal custody of the children." Regarding the Parenting Time section of the CCRC report, the court is adopting Sections 1 and 3 therein. Respondent shall have sole physical custody of the children. Petitioner shall have non-professional supervised visits with an individual agreed upon by the parties twice per week for four hours per visit. The non-professional supervisor shall complete and file with the court an FL-324(NP) prior to supervising any visits. The section of the CCRC report labeled "communication between the parents" is amended to read as follows: "Mother and Father shall utilize Our Family Wizard to relay information to each other about the children's education, health, and general welfare. Our Family Wizard shall also be used to conduct telephone and video contact between either parent and the children."

In addition to the above, the parties are ordered to re-enroll the minors in Antelope Meadows Elementary School forthwith. If Antelope Meadows is unable to accommodate the re-enrollment then the children are to be enrolled in Dry Creek Joint Elementary School District. The court is adopting the terms of paragraphs 27 through 29 of Respondent's supplemental declaration to ensure that neither parent interferes with the children's education.

The court is reiterating its prior order appointing Minor's Counsel. The parties are ordered to facilitate Minor's Counsel's representation of the children and comply with any reasonable requests made by him.

Respondent's request for Petitioner to undergo a mental health evaluation is granted pursuant to Evidence Code § 730. Respondent shall provide Petitioner with the names of three evaluators no later than September 24, 2026. Petitioner shall select one of the evaluators and notify Respondent of her selection no later than October 1, 2026. If Petitioner does not provide her selection by that date then Respondent may select any one of the three. Respondent is to pay the entire cost of the evaluation, subject to reallocation.

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The court is setting a review hearing for Thursday, January 14th, 2027, at 8:30 am in Department 5 to address the status of 730 evaluation and to receive input from Minor's Counsel regarding the status of Petitioner's visits with the minors.

Finally, because the court is awarding Respondent primary physical custody of the children with only limited supervised visits to Petitioner, the court does not find that altering the holiday schedule for the 2027 year would be in the best interests of the children as it would only further disrupt their routine and contact with their mother. Moreover, given that Respondent is being awarded the majority of the time with the children the court does not find it necessary to award him make-up time as that would only serve to withhold the children from their mother during her weekly four hours of visitation.

All prior orders not in conflict with this order remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE SEPTEMBER 3, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATIONS. THE LEGAL CUSTODY SECTION IS AMENDED TO READ AS FOLLOWS: "RESPONDENT SHALL HAVE SOLE LEGAL CUSTODY OF THE CHILDREN." REGARDING THE PARENTING TIME SECTION OF THE CCRC REPORT, THE COURT IS ADOPTING SECTIONS 1 AND 3 THEREIN. RESPONDENT SHALL HAVE SOLE PHYSICAL CUSTODY OF THE CHILDREN. PETITIONER SHALL HAVE UNPROFESSIONAL SUPERVISED VISITS WITH AN INDIVIDUAL AGREED UPON BY THE PARTIES TWICE PER WEEK FOR FOUR HOURS PER VISIT. THE NON-PROFESSIONAL SUPERVISOR SHALL COMPLETE AND FILE WITH THE COURT AN FL-324(NP) PRIOR TO SUPERVISING ANY VISITS. THE SECTION OF THE CCRC REPORT LABELED "COMMUNICATION BETWEEN THE PARENTS" IS AMENDED TO READ AS FOLLOWS: "MOTHER AND FATHER SHALL UTILIZE OUR FAMILY WIZARD TO RELAY INFORMATION TO EACH OTHER ABOUT THE CHILDREN'S EDUCATION, HEALTH, AND GENERAL WELFARE. OUR FAMILY WIZARD SHALL ALSO BE USED TO CONDUCT TELEPHONE AND VIDEO CONTACT BETWEEN EITHER PARENT AND THE CHILDREN."

IN ADDITION TO THE ABOVE, THE PARTIES ARE ORDERED TO RE-ENROLL THE CHILDREN IN ANTELOPE MEADOWS ELEMENTARY SCHOOL FORTHWITH. IF ANTELOPE

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MEADOWS IS UNABLE TO ACCOMMODATE THE RE-ENROLLMENT THEN THE CHILDREN ARE TO BE ENROLLED IN DRY CREEK JOINT ELEMENTARY SCHOOL DISTRICT. THE COURT IS ADOPTING THE TERMS OF PARAGRAPHS 27 THROUGH 29 OF RESPONDENT'S SUPPLEMENTAL DECLARATION TO ENSURE THAT NEITHER PARENT INTERFERES WITH THE CHILDREN'S EDUCATION.

THE COURT IS REITERATING ITS PRIOR ORDER APPOINTING MINOR'S COUNSEL. THE PARTIES ARE ORDERED TO FACILITATE MINOR'S COUNSEL'S REPRESENTATION OF THE CHILDREN AND COMPLY WITH ANY REASONABLE REQUESTS MADE BY HIM.

RESPONDENT'S REQUEST FOR PETITIONER TO UNDERGO A MENTAL HEALTH EVALUATION IS GRANTED PURSUANT TO EVIDENCE CODE § 730. RESPONDENT SHALL PROVIDE PETITIONER WITH THE NAMES OF THREE EVALUATORS NO LATER THAN SEPTEMBER 24, 2026. PETITIONER SHALL SELECT ONE OF THE EVALUATORS AND NOTIFY RESPONDENT OF HER SELECTION NO LATER THAN OCTOBER 1, 2026. IF PETITIONER DOES NOT PROVIDE HER SELECTION BY THAT DATE THEN RESPONDENT MAY SELECT ANY ONE OF THE THREE. RESPONDENT IS TO PAY THE ENTIRE COST OF THE EVALUATION, SUBJECT TO REALLOCATION.

THE COURT IS SETTING A REVIEW HEARING FOR THURSDAY, JANUARY 14TH, 2027, AT 8:30 AM IN DEPARTMENT 5 TO ADDRESS THE STATUS OF 730 EVALUATION AND TO RECEIVE INPUT FROM MINOR'S COUNSEL REGARDING THE STATUS OF PETITIONER'S VISITS WITH THE MINORS.

FINALLY, RESPONDENT'S REQUEST FOR MAKE-UP TIME OVER THE 2027 HOLIDAYS IS DENIED.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE

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TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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6. JASON HARDOUIN V. JENAE NORELL

22FL0118

On March 17, 2026, the parties appeared before the court for a contempt hearing against Respondent. Ultimately, Respondent agreed to plead no-contest and receive a conditional sentence for 1 year to complete 120 hours of community service. The court accepted the plea deal and set a review hearing for the present date to assess Respondent's completion of the community service requirement.

There have been no filings since the March hearing date. The parties are ordered to appear for the hearing to update the court on the status of Respondent's community service hours.

TENTATIVE RULING #6: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING TO UPDATE THE COURT ON THE STATUS OF RESPONDENT'S COMMUNITY SERVICE HOURS.